

Party A: [Company Name / Individual Name], located at [Address] ("Party A").

Party B: [Company Name / Individual Name], located at [Address] ("Party B").

(Each referred to individually as a "Party" and collectively as the "Parties").

1. Purpose

The Parties wish to explore a potential business relationship or transaction (the "Purpose"). In connection with the Purpose, each Party may disclose to the other certain confidential and proprietary information.

2. Definition of Confidential Information

"Confidential Information" means any information disclosed by one Party (the "Disclosing Party") to the other Party (the "Receiving Party"), whether orally or in writing, that is designated as confidential or that reasonably should be understood to be confidential given the nature of the information and the circumstances of disclosure. This includes, but is not limited to, business plans, financial data, customer lists, intellectual property, and trade secrets.

3. Exclusions from Confidential Information

Confidential Information does not include information that:

- (a) is or becomes generally known to the public through no breach of this Agreement;
- (b) was known to the Receiving Party prior to its disclosure by the Disclosing Party;
- (c) is rightfully received from a third party without restriction on disclosure; or
- (d) is independently developed by the Receiving Party without use of the Disclosing Party's Confidential Information.

4. Obligations of Receiving Party

The Receiving Party shall:

- (a) Use the Confidential Information solely for the Purpose;
- (b) Protect the Confidential Information using at least the same degree of care it uses for its own similar information, but no less than a reasonable degree of care;
- (c) Restrict disclosure of Confidential Information to its employees, contractors, or advisors who have a "need to know" and are bound by confidentiality obligations at least as restrictive as those herein.

5. Term

This Agreement shall remain in effect for a period of [Number, e.g., 2] years from the date of disclosure, unless otherwise terminated by written agreement of the Parties.

6. Ownership and Return of Information

All Confidential Information remains the property of the Disclosing Party. Upon written request, the Receiving Party shall return or destroy all copies of Confidential Information in its possession.

7. Governing Law

This Agreement shall be governed by and construed in accordance with the laws of the State of [State/Province].

8. Miscellaneous

This Agreement constitutes the entire agreement between the Parties regarding its subject matter and may only be modified in writing signed by both Parties.

IN WITNESS WHEREOF, the Parties have executed this Agreement as of the date first written above.

[PARTY A NAME]

By: _____

Name: [Name of Signatory]

Title: [Title]

[PARTY B NAME]

By: _____

Name: [Name of Signatory]

Title: [Title]
